

-

File No.: EXP202402279

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 20, 2023, a complaint was filed with the Spanish Agency for Data Protection against A.A.A. (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that, on December 16, 2021, within File No. (...), submitted through the ODDUS (Office for the Defense of the Rights of Health Users of the Government of the Canary Islands), requested access to a copy of the report (informed consent) that he signed on the same day of the surgery. Receiving a response from the complained party, within the referred file, attaching: Report of assistance visit on December 5, 2018, Report of the surgery performed on December 20, 2018, nursing care performed on December 24, 28, and 31 of 2018, January 8 and 28, February 15, March 12, April 8, and May 13 of 2019, and Report of the visit made in September 2019.

Within the referred file, the complainant states that he reiterates his request for access to a copy of the report (informed consent) that he signed on the same day of the surgery and a copy of the report of the results of the analysis performed before the surgery.

On March 26, 2022, through the ODDUS, he reiterated his request for access to a copy of the informed consent that he signed on the same day of the surgery. The complained party responded that, as of April 19, 2022, they did not have the requested document for reasons beyond their control.

Furthermore, by written communication dated May 19, 2022, the complained party stated that, on February 6, 2020, they suffered a flood caused by a neighbor's leak, which severely affected a large number of medical records (...), including that of the complainant, being unable to recover the required consent, providing supporting documentation of this fact. They provided the complainant with a standard consent form similar to the one he signed at the time, but without being filled out or signed. By burofax dated November 25, 2022, the complainant, through his legal representative, requested access to a complete copy of his medical history, having received no response.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

2/6

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on February 20, 2024, as stated in the acknowledgment of receipt in the file.

No response has been received to this forwarding communication.

THIRD: On March 20, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

LEGAL GROUNDS

I

Competence

According to the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Right of access of the data subject

Article 15 of the GDPR, which regulates the right of access of the data subject, establishes the following:

"1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/6

c) the recipients or categories of recipients to whom the personal data have been communicated or will be communicated, in particular recipients in third countries or international organizations;

d) where possible, the intended retention period for the personal data or, if not possible, the criteria used to determine that period;

e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;

f) the right to lodge a complaint with a supervisory authority;

g) when the personal data have not been obtained from the data subject, any available information about their source;

h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

III

Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of processing, as well as the varying risks of likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data in a timely manner in the event of a

physical or technical incident;

d) a process for regularly testing, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by processing, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized disclosure of or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may be used as an element to demonstrate compliance with the requirements set out in paragraph 1 of this Article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless he or she is required to do so by Union or Member State law."

IV

Facts Subject to the Complaint

The complainant indicates, first of all, that he repeatedly requested a copy of the signed consent prior to a surgery performed by the respondent. Some documents were provided, and it was indicated that, on February 6, 2020, they suffered a flood caused by a neighbor's leak, which severely affected a large number of medical records (...), including that of the complainant, and the required consent could not be recovered.

The security measures require that entities processing personal data can ensure the integrity and availability of the same, which could not be guaranteed as a document that was part of the medical record was irretrievably damaged on February 6, 2020.

Article 83.4.a) of the GDPR states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 10,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 2% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the obligations of the controller and the processor pursuant to Articles 8, 11, 25 to 39, 42, and 43;" Article 73.f) qualifies as a serious infringement for the purposes of limitation:

"According to what is established in Article 83.4 of Regulation (EU) 2016/679, serious infringements that constitute a substantial violation of the articles mentioned therein shall be subject to a limitation period of two years, particularly the following:

(...)

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation (EU) 2016/679"

V

Conclusion

The possible infringing action of the respondent would be time-barred by the passage of the two-year statute of limitations for serious infringements, as indicated by Article 73 of the LOPDGDD, starting from the moment when the security measures were breached and part of the medical documentation that formed part of the claimant's medical history was irretrievably damaged.

It should be noted that the complaint was filed after the statute of limitations for the possible infringement committed by the respondent had expired.

Regarding the right of access to their medical history, the following documentation has already been provided: Attendance report from the visit on December 5, 2018, Report of the surgery performed on December 20, 2018, nursing care performed on December 24, 28, and 31, 2018, January 8 and 28,

February 15, March 12, April 8, and May 13, 2019, and Report of the visit conducted in September 2019. Concerning the requested informed consent document, it has already been indicated that it cannot be provided due to a flooding incident in the archive and medical histories.

Thus, since it has not been possible to attribute responsibility for the breach of the legally established security measures due to the possible infringement being time-barred, in accordance with what has been stated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es